

In this corporate-opportunity case, Martinez was originally represented by the same attorney as other defendants. The others shifted to different counsel, leaving Martinez alone represented by the prior attorney. That attorney was allowed to withdraw in January 2025 due to lack of contact and payment.

Martinez and his adult son now inform the Court that Martinez was suffering from serious medical issues in the interim. As of June 11, 2026, he is now represented by the same attorney as the other defendants (Webb). Webb has substituted in, provided a formal response to the outstanding RFP, and produced responsive documents.

The Court sympathizes with both plaintiffs' frustration at lack of timely discovery, and Martinez's unfortunate medical circumstances. Fortunately, it now appears that the problems of Martinez effectively dropping out of the case have solved themselves with Webb's appearance for Martinez and belated discovery responses.

As discussed at the CMC this Wednesday morning, the Court expects the parties – all of the parties – to meet to discuss all open issues of discovery or other exchange of information; they may want to involve a neutral if necessary before resorting to formal discovery motions. If there remain rulings needed from the Court on discovery issues, it may be appropriate to expedite the hearings in light of the trial date. At present, however, there are no such motions on the Court's calendar and the Court will be disappointed if it turns out to be necessary to rule on on discovery issues.

15. 9:00 AM CASE NUMBER: MSC20-00933
CASE NAME: WILLIAMS V. FARTHING
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT JUDGMENT**
FILED BY: FARTHING, DAVID
TENTATIVE RULING:

Default judgment was entered in this case in December 2024. Defendant Farthing, a Texas resident, filed this motion to set aside the default. (He filed the motion pro per, though counsel for him has subbed in.)

There is no proof in the Court's file that this motion was ever served on the other side. The Court notes that counsel for the plaintiff/judgment creditor has recently subbed out, with Ms. Williams now being pro per, which may perhaps suggest that the plaintiff's side is familiar with the motion – but that is far from certain and is not documented in the file. Plaintiff has filed no response to the motion.

The motion to set aside is therefore taken **off calendar**, for lack of confirmed service on the plaintiff. The motion is **continued** to August 27, 2026, at 9:00 a.m. The moving defendant must file proof by July 10 that he has served his motion on plaintiff. (Service should be by mail at the address on plaintiff's recent substitution of counsel form.)

It is suggested that defendant (directly or through his attorney) should promptly get in informal touch with plaintiff to discuss whether the matter can be settled, or if not, at least whether the parties can agree to vacate the default and litigate the case on its merits.

16. 9:00 AM CASE NUMBER: N26-0509

CASE NAME:

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

The proposed minor's compromise is **approved**.

17. 9:00 AM CASE NUMBER: N26-0717

CASE NAME: ANTHONY BETTENCOURT VS. THE DEPARTMENT OF MOTOR VEHICLES

HEARING IN RE: WRIT OF MANDATE - DMV

FILED BY:

TENTATIVE RULING:

This is a petition for a writ of administrative mandate, challenging suspension of the petitioner's special driver certificate. The petition was served on DMV, but no administrative record has been filed, and DMV has not filed any response. The petition is therefore **continued** to August 27, 2026, at 9:00 a.m. so that an administrative record can be provided (and DMV may respond if it so desires). In the event that the record is still not available by (say) mid-August, the parties are encouraged to contact the Court for a further rescheduling.